

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Thursday, June 4, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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21CV-03369	Veronica Padron vs Bhavesh Patel, et al.
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Motion for Terminating Sanctions

Plaintiff's motion for terminating sanctions against Defendant Bhavesh Patel is GRANTED. Defendant Bhavesh Patel's answer is hereby stricken and the clerk is ordered to enter Defendant's default.

Although terminating sanctions are a drastic remedy and generally disfavored, they are appropriate when other sanctions have failed and the court is left with no alternative. Here, Defendant Bhavesh Patel has disregarded multiple court orders, repeatedly and without excuse or explanation failed to participate in the litigation, and ignored discovery, all resulting in delays of the trial. This includes failing to appear at the mandatory settlement conference without notice to opposing counsel. Defendant has also not responded to or opposed the instant motion.

The Court finds that Defendant Bhavesh Patel's failure to participate in the litigation, despite initially answering the complaint, and failure to attend litigation proceedings was willful, and that no lesser sanction will produce compliance with this Court's orders or which the rules of discovery.

The request for monetary sanctions is DENIED, in light of the terminating sanctions.